

Memo.No.4106/SC.C/65-3, Genl. Admn. (SC.C) Dept., dt.21.06.1966 regarding entrustment of only important and complicated cases to Anti-Corruption Bureau.

Subject Heading: ACB - types of cases to be referred

Ref : 1. From the Director, ACB., Lr.No.76/S2/65 dt. 15-11-65.

2. From the Director, ACB., Lr.No.85/S2/65 dt. 24-12-65.

While reviewing the monthly progress reports of the Director, Anti-Corruption Bureau, Hyderabad, it was observed that while some time would be required for completing investigation, there could be no justification for keeping cases relating to corruption, pending too long, as delay in such cases would have a demoralising effect. The Director, Anti-Corruption Bureau was, therefore, requested to take steps to arrest the increase in pendency and also to reduce the number of pending cases, especially old cases.

2. In his letter first cited, the Director, Anti-Corruption Bureau has stated that he has been impressing often on all the officers concerned in the Anti-Corruption Bureau, both orally and in writing, to give priority to enquiries pending over one year and cases in which the accused officials are under suspension and complete them with utmost expedition. He has also stated that the number of fresh cases received every month has been very large and that even if the disposal of cases is stepped up further, fresh cases received for enquiry would still outnumber the cases disposed of and thus, the pendency is steadily increasing every month. It is observed that unless the present rate of fresh enquiries entrusted to the Anti-Corruption Bureau is reduced, it is not possible to arrest the pendency of cases.

3. The question of strengthening the staff of the Bureau to arrest pendency of cases has been deferred in view of the Emergency and the need to maintain economy. Under the terms of G.O.Ms.No.677, General Administration (Services-D) Department, dt.30.05.1961, normally, reference to the Anti-Corruption Bureau is made only after the case is carefully examined and the concerned Head of the Department or Department of the Secretariat is satisfied that there is a case for investigation by the Anti-Corruption Bureau. However, to meet the present situation, the Departments of Secretariat and Heads of Departments are requested that only important and complicated cases may be entrusted to the Anti-Corruption Bureau, for enquiry. This, it is felt, will not only arrest the increase in the pendency but will also afford time to investigating officers to complete long pending and urgent cases more expeditiously.